

TENTATIVE RULING(S) FOR August 27, 2026

Department S37 – Judge Winston Keh

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CIVSB2521095

McDaniel v. Horizon Oxygen

TENTATIVE RULING(S):

Context & Factual Allegations

Marilyn McDaniel was hit in the head with a clamp and suffered a head injury, which ultimately contributed to her death in September 2024. Plaintiffs Marie McDaniel, David McDaniel, and June Hughes, the Decedent's surviving children, commenced suit over the death in July 2025. The operative first amended complaint (FAC) was filed as a matter of right, in October 2025, as against Horizon Oxygen and Medical Equipment Inc. (Horizon), Calstro Hospice High Desert (Calstro HD), and, via doe amendment, Calstro Hospice Inc. (Calstro).

The FAC indicates the Decedent was hospitalized after suffering a fall in August 2024. While she was in the hospital, Horizon installed a hospital bed at Marie's house, where the Decedent lived. However, Horizon failed to install a trapeze bar that was designed to assist patients with repositioning. A Horizon employee returned after the Decedent was discharged to install the bar. The installation occurred while the Decedent was sleeping in the bed. The employee let go of a clamp he was holding and it fell and struck the Decedent, who was 93 years old. (FAC at ¶¶ 11-20.)

As for Calstro HD, it provided hospice services to the Decedent and a nurse arrived an hour and a half after the incident. Marie informed the nurse about the incident and her mother's pain. The next day the Decedent's physical and cognitive condition declined, she was lethargic and agitated, her face crooked on her left side, and she lost the ability to communicate clearly. Calstro HD refused to answer whether the trauma could have caused the decline and refused to recommend that the Decedent seek treatment at a hospital. Calstro HD also had multiple internal meetings about the injury but refused to disclose the purpose of the meetings or what was discussed. As the Decedent's condition worsened, Calstro HD still neither recommended nor authorized evaluation and treatment at a hospital, which was a contributing factor in the death. (FAC at ¶¶ 13, 23-26, 28-29, and 32.)

As for Calstro (as opposed to Calstro HD), the FAC suggests Does 1 to 25 were negligent in their acts or omissions. Otherwise Calstro is lumped in with the FAC's generic references to "Defendants" and the claim that each is responsible in some manner for the damages alleged. (FAC at ¶¶ 6-8.) Overall, the FAC contains claims for (1) negligence, (2) negligent hiring, supervision, and retention, (3) elder abuse and neglect, (4) medical malpractice, (5) negligent infliction of emotional distress, and (6) wrongful death.

As currently relevant, the FAC also indicates "Defendants" were care custodians of the Decedent, Defendants' conduct constituted neglect, Defendants failed to exercise reasonable care in failing to select and install durable medical equipment, failing to provide for the Decedent's physical and mental health needs, and failing to protect her. Defendants also purportedly failed to employ appropriate safeguards, failed to install the trapeze bar in a manner

that would not pose a risk of injury, failed to send the Decedent to an appropriate care facility for evaluation and treatment, failed to accept and retain persons only for whom they could provide care, and failed to treat the Decedent with dignity. (FAC at ¶ 47.)

The Demurrer

Calstro (as opposed to Calstro HD) now demurs to the third cause of action for elder abuse on the grounds that the claim fails to state sufficient facts to state a valid cause of action because the facts do not show recklessness, oppression, fraud, or malice. The demurrer is supported by a declaration from attorney David Carman.

The demurrer is opposed by Plaintiffs on the grounds that the claims are sufficiently stated and the discovery thus far supports the claim. The opposition is supported by a declaration from attorney Frederick Rispoli and records from Calstro.

Calstro has replied.

The Third Cause of Action for Elder Abuse

The purpose of the Dependent Adult/Elder Abuse Act is “to protect a particularly vulnerable portion of the population from gross mistreatment in the form of abuse and custodial neglect.” (*Delaney v. Baker* (1999) 20 Cal.4th 23, 33.) The abuse of an elder or dependent adult under the Act is defined as either “[p]hysical abuse, neglect, financial abuse, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering” or the “deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering.” (Welf. & Inst. Code, § 15610.07.)

“Neglect” is the “negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise.” (Welf. & Inst. Code, § 15610.57, subd. (a)(1).) Neglect can include, but is not limited to, the failure to assist in personal hygiene or provision of food, clothing, or shelter; failure to provide medical care for physical and mental health needs; failure to protect from health and safety hazards; and failure to prevent malnutrition or dehydration. (Welf. & Inst. Code, § 15610.57, subd.’s (b)(1)-(4).)

To state a claim for neglect, the plaintiff must alleged (a) the defendant(s) had care or custody of the plaintiff/decedent, (b) the plaintiff/decedent was an elder or dependent adult while in the defendant's(s') care or custody, (c) the defendant(s) failed to use the degree of care that a reasonable person in the same situation would have used, (d) the plaintiff/decedent was harmed, and (e) the defendant's(s') conduct was a substantial factor in causing decedent's harm. (CACI 3103.)

To obtain the enhanced statutory remedies for neglect the plaintiff will need to establish by clear and convincing evidence the neglect and that defendants acted with recklessness, oppression, fraud or malice in the neglect. (CACI 3104; *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 789 [discussing an elder abuse claim].) Essentially, the plaintiff must allege conduct that would afford recovery for punitive damages. Recklessness is a deliberate disregard of the high degree of probability that an injury will occur and involves more than inadvertence, incompetence, unskillfulness, or failure to take precautions, but rather rises to the level of a conscious choice of a course of conduct with knowledge of the serious danger to others involved in it. (*Delaney, supra*, 20 Cal.4th at pp. 31–32.)

Additionally, if the plaintiff seeks the enhanced remedies against an employer, then the plaintiff must plead (a) the employer had advanced knowledge of the unfitness of the employee and the employer employed him/her with a conscious disregard for the rights or safety or others, (b) the employer authorized or ratified the wrongful conduct, or (c) the employer is personally guilty of oppression, fraud, or malice. The foregoing must have been by an officer, director, or managing agent of the corporate employer. (Welf. & Inst. Code, § 15657, subd. (c); Code Civ. Proc., § 3294, subd. (b).) Finally, the facts constituting the neglect and establishing the causal link between the neglect and the injury “must be pleaded with particularity,” in accordance with the pleading rules governing statutory claims. (*Carter v. Prime Healthcare Paradise Valley, LLC* (2011) 198 Cal.App.4th 396, 406-407.)

In this case, all the specific allegations are directed at Calstro HD and Horizon. The demurrer suggests that the allegations against Calstro HD are the same as the allegations against Calstro, which is not true since both were sued separately and Calstro was added as a

doe defendant (as Doe 1 in particular). For instance, the FAC indicates it was the Horizon employee that installed the bed and caused the clamp to fall and hit the Decedent. (FAC at ¶ 19.) It was also the Calstro HD nurse that arrived after the incident. Calstro HD's staff failed to answer questions and failed to recommend that the Decedent should seek treatment at the hospital. (FAC at ¶¶ 2, 5, 23, and 26.)

To the extent Calstro is included within the generic references to "Defendants," the FAC also suggests it took part in the installation of the bed, failed to "employ appropriate safeguards," failed to send the Decedent to an appropriate facility for proper evaluation, failed to "take appropriate measures," failed to accept only persons for whom they could provide adequate care, and failed to treat the Decedent with respect and dignity. (FAC at ¶¶ 40, 42-43, and 59.) Beyond the allegations related to the bed and the failure to transfer the Decedent, the allegations are conclusory.

There is also no affirmative misconduct alleged, such as the use of chemical restraints, nor does the alleged neglect reach the level of the cases outlined above. To the extent Calstro was even involved with the installation of the bed, the facts suggest the employee, although inexperienced, was attempting to help and was merely negligent in letting go of the clamp or conducting the installation of the bar with the Decedent sleeping. That is not enough to show recklessness, which must be supported by facts showing a deliberate disregard of the "high degree of probability that an injury will occur and involves more than inadvertence, incompetence, unskillfulness, or failure to take precautions, but rather rises to the level of a conscious choice of a course of conduct with knowledge of the serious danger to others involved in it." (*Delaney, supra*, 20 Cal.4th at pp. 31–32.)

There is also no indication Calstro failed to provide care or neglected the Decedent in any other way besides the purported failure to recommend or transfer the Decedent for evaluation. The immediacy of the need to transfer the Decedent is also not apparent nor are any facts alleged indicating any Calstro employee was employed with a conscious disregard for the rights or safety of others, that Calstro authorized or ratified the wrongful conduct (beyond a conclusory assertion), or that Calstro is personally guilty of oppression, fraud, or malice. Overall, the FAC

fails to state sufficient facts to support the enhanced remedies under the action and the demurrer should therefore be sustained.

RULING

For the reasons stated above, the Court rules as follows:

Sustains the demurrer to the third cause of action for elder abuse as the claim is insufficiently stated, with 20 days leave to amend.

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CIVSB2526795

Plata v.Key Essential

TENTATIVE RULING(S):

This is a labor dispute case. On April 22, 2026, Defendant filed the instant Demurrer, asserting that the Complaint fails to state sufficient facts to support a PAGA cause of action and is uncertain. Plaintiff filed an opposition on August 14, 2026, and Defendant filed a reply on August 20, 2026.

1. Request for Judicial Notice

Defendant requests judicial notice of the following documents:

1. Exhibit 1 – Plaintiff's initial PAGA Notice, dated December 12, 2024;
2. Exhibit 2 – Letter from the Labor and Workforce Development Agency ("LWDA"), dated February 13, 2025;